

		petitioner's OA claims because Mobilitas is entitled to reduce any payment to petitioner by the amount paid by Blue Star, Mobilitas does not dispute that petitioner's claim under its policy should be arbitrated pursuant to the policy's terms. However, Mobilitas' right to offset any payments to petitioner based on amounts paid by Blue Star is a defense that Mobilitas may raise in arbitration. Mobilitas' right to any offset does not preclude this Court from compelling Mobilitas to arbitration. If Mobilitas believes arbitration should be stayed until the proper amount of an offset can be calculated, Mobilitas may raise the argument with the arbitrator. In light of the above, the Motion to Compel Arbitration is GRANTED. Petitioner's request for attorney fees is DENIED. The authorities cited by Petitioner do not support such an award in connection with a motion to compel arbitration. A Status Conference re: Arbitration is set for February 23, 2027 at 9:30 a.m. in Department C25. Petitioner to give notice.
108	Barkley vs. H-Mart Supermarket 25-01461644	Plaintiff Brent Barkley moves for leave to file an amended complaint. For the reasons set forth below, the Motion is DENIED. Plaintiff previously filed a motion for leave to amend for hearing on April 6, 2026. That prior motion was denied because there was no proof of service, Plaintiff erroneously cited to the Federal Rules of Civil Procedure, and the motion was not accompanied by any supporting declaration or proposed amended pleading. Plaintiff filed the instant motion on April 8, 2026. Again, there is no proof of service showing the moving papers were served on defense counsel. A proof of

		service filed on April 8, 2026 indicates that defense counsel was served with a Garden Grove Police Report and photographs of the H-Mart Supermarket, not the moving papers. Further, the moving papers again cite to the Federal Rules of Civil Procedure and are not accompanied by a supporting declaration or proposed amended pleading. Thus, the instant motion does not comply with Cal. Rules of Court, Rule 3.1324. The Motion is therefore DENIED. Moving Party to give notice.
109	KAREN SUE NAYLOR as the Chapter 7 bankruptcy trustee for Elite Aerospace Group, Inc. vs. Federal Insurance Company 22-01290891	Motion for Summary Judgment and/or Adjudication Defendant, Federal Insurance Company (“Federal”), moves for an order granting summary judgment in its favor on all claims asserted within the First Amended Complaint of Plaintiff, Karen Sue Naylor (“Plaintiff” or “Naylor”), as Chapter 7 bankruptcy trustee for Elite Aerospace Group, Inc. (“Elite”), and seeks summary adjudication as to Plaintiff’s first and second causes of action and the claim for punitive damages. Merits A defendant moving for summary judgment or summary adjudication has met his or her burden of showing that a cause of action has no merit if he or she shows one or more elements of the cause of action cannot be established, or that there is a complete defense to that cause of action. (Code Civ. Proc. § 437c(p)(2).) Once the defendant has met that burden, the burden shifts to the plaintiff to show that a triable issue of one or more material facts exists as to that cause of action or a defense. (Ibid.) A plaintiff must set forth specific facts showing that a triable issue of material fact exists as to a cause of action or a defense thereto. (Ibid.) A cause of action has no merit if either